

do so would be not to decide a judicial controversy, but to assume a position of authority over the governmental acts of another and co-equal department, an authority which plainly we do not possess.

No. 24, Original, dismissed.

No. 962 affirmed.

WILLARD, SUTHERLAND & COMPANY *v.* UNITED STATES.

APPEAL FROM THE COURT OF CLAIMS.

No. 209. Argued May 1, 2, 1923.—Decided June 4, 1923.

1. A contract for the purchase of coal by the Government at a stated price per ton which does not require the Government to take, or limit its demand to, any ascertainable quantity, is unenforceable, for lack of consideration and mutuality. P. 492.
2. Such a contract, however, becomes valid and binding to the extent to which it is performed, and a party who, abandoning an earlier protest, voluntarily delivers coal under the contract, is limited to the contract price, and cannot recover more from the United States. P. 494.

56 Ct. Clms. 413, affirmed.

APPEAL from a judgment of the Court of Claims, denying the appellant's claim for the difference between the market price of coal furnished the Navy and the price stated in a contract.

Mr. Thomas Renaud Rutter and Mr. Gibbs L. Baker, with whom Mr. Karl Knox Gartner, Mr. John A. Selby and Mr. Clarence A. Miller were on the brief, for appellant.

Mr. Rufus S. Day, Special Assistant to the Attorney General, with whom Mr. Solicitor General Beck was on the brief, for the United States.

MR. JUSTICE BUTLER delivered the opinion of the Court.

This suit was brought to recover \$3,650, being \$3.65 per ton for 1,000 tons of coal furnished the Navy. Appellant